All but one [8] of the remaining 79 claims are introduced by the somewhat limiting phrase "*in* a machine of the class described." But in almost all of these the introduction is followed by a recital of old elements claimed in the same manner as they were in the earlier McFeely,[9] and here again the aggregate effect is to reclaim a heel seat lasting machine in its entirety.

Recent studies conducted by the Temporary National Economic Committee show that the technique employed in the second McFeely patent is not unusual.[10] In essence,

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[8] Claim 39 purports to cover "an end lasting mechanism," but it, too, attempts to reclaim various old elements.

[9] Claim 84 is illustrative. It provides: "In a machine of the class described, the combination with last and shoe positioning means, of end embracing wipers, operating means for said wipers including parts movable to effect a preliminary adjustment of the wipers to the contour of the shoe while other portions of said operating means are stationary, and tackers movable inwardly over the shoe and connected to said wipers for preliminary adjustment with them."

[10] *E. g.*, a "Memorandum of Policy" from the files of an industrial corporation, set out in the TNEC Hearings, contains the following guidance for the corporation's patent division:

"Continuing the Monopoly by Us or Others

"It often happens that if minor improvements are protected by patents, machines and processes licensed under the original basic patents are given a much longer earning life by the fact that the minor improvements continue the protection on the machines, and even when the basic patents expire, others are prevented from using the latest commercial form of the machine.

"Example: The . . . basic patents expired several years ago. Nobody, however, dare use the present type of . . . machine because of improvements covered by minor patents. Likewise, if the original patent protection obtained on particular machines should not be sustained by the Courts, yet a second line of defense patents covering details and improvements may become a most valuable asset.

"It has always been our ambition to obtain patents which will be related to furnace, melting and refining, feeding, delivery, forming, automatic handling, carrying, stacking and annealing. Conceivably

it is an attempt to utilize minor improvements to perpetuate exclusive enjoyment of a major instrument of production which rightfully belongs to the public. Distinct separation of the new would afford guidance to those who wished to use the old when the exclusive rights to it expired. On the other hand, blurring the lines of separation places anyone who attempts to use any part of the amalgam in jeopardy of burdensome infringement suits. Where the patent owner has ample resources to bear the costs of repeated litigation, the power of the infringement suit to stifle competition is increased. And where potential competitors are weak and few, it may afford a practically complete protection for the preservation of undeserved monopoly.

The circumstances here are most favorable for the use of patent privileges as a deterrent to all competition. By its vagueness and generality, the patent in suit creates an overhanging threat to anyone who might want to produce any kind of heel seat lasting machinery. And this threat is intensified by the universal recognition of the patent owner's long established rule over the entire shoe machinery industry.

Moreover, it is entirely unrealistic to judge this patent in isolation. It is a stage of a process which the record shows

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we might lose patent domination of one or more important links, but still retain practical control of the whole chain by means of controlling the most efficient form of the other links." TNEC Hearings, Part 2, 777–778.

Cf. TNEC Monograph No. 31, 160: "A patent provides a sanction but it is about to expire—by some means or other its life must be prolonged. An improvement alone is hardly enough; its importance must be magnified until the line between invention and improvement is completely blurred. A multiplication of improvements is far better; it creates at least an appearance that an industrial art is being transformed."

began years before and is still continuing, a process by which it appears possible for the respondent to make the monopoly endless. The first McFeely patent, assigned to the respondent, embraced the whole universe of prior development in heel seat lasting machines. About a year after it was issued, the United Shoe Machinery Company became the owner of another patent on a lasting machine, Brock No. 1,188,616. The 77 claims of this patent reëmbody too many of the features previously covered by the first McFeely to allow enumeration here. Four years later, Pym No. 1,368,968, also on a lasting machine, was issued and assigned to the respondent. Of the 172 claims of this patent, there is another multitude embodying identical features of the first McFeely. Although applied for about a year after the first McFeely, the patent in suit was not issued until 1925, four years after the Pym patent. The second McFeely appears to be only the currently used weapon; the record reveals another in the respondent's arsenal, awaiting service when this one is no longer useful.[11] To date, the series of overlapping patents has been continuous. There is no reason to suppose that abandonment of so successful a practice is contemplated for the future.

The discouragement to future invention and the potentialities of deceiving and misleading the public, which this Court condemned 70 years ago, are here present in fullest measure. *Carlton* v. *Bokee, supra.* Opposed to departure from the salutary rule announced by Mr. Justice Bradley, I believe the patent before us should be declared void.

[11] Jorgensen No. 1,852,015, issued in 1932 and assigned to the respondent, purports to cover improvements on a machine for shaping shoe uppers "over lasts or other forms." It states that the invention "is herein illustrated as embodied in a machine for lasting the heel ends of shoes, but it is to be understood that in its more general aspects it is not limited to heel-end-lasting machines."